

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YENNIE SOLHEIM FULLER,

Petitioner

VS.

XAVIER R. FULLER,

Respondent

) Case Number: FDI-19-791885

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yennie Solheim (Mother) and Respondent Xavier Fuller (Father) were married in 2013 and separated in 2019. They have two minor children together, Chloe (DOB 7/8/2016, age 9) and Heidi (DOB 5/20/2019, almost 7). A Judgment of Dissolution was filed 7/8/2022. The Judgment included the parties' agreement to share joint legal and joint physical custody of the children, with Father to have the children overnight every Wednesday to Thursday and Sunday to Monday, certain holidays, and daily FaceTime calls.
- 2) On 11/10/2024, Mother filed an ex parte request seeking temporary sole legal and physical custody based on Father's paranoid and delusional behavior. She asked that all visits be suspended or supervised pending Father's undergoing a psychological evaluation. The Court maintained the joint legal custody order but granted temporary sole physical custody to Mother with a step-up from professionally supervised visits to unsupervised visits for Father. On 6/11/2025, the Court ordered the parties to undergo a custody evaluation.

- 1 3) At a 9/16/2025 review hearing, the Court maintained joint legal custody and sole physical
2 custody to Mother and issued orders relating to the custody evaluation as well as a detailed
3 parenting time schedule for Father.
- 4 4) On 4/17/2026, Mother filed an ex parte request seeking temporary sole legal and sole physical
5 custody of both children based on statements the children made indicating Father had sexually
6 abused them. Mother asked that Father's visits—i.e., Wednesdays from 1:30pm to 4:30pm and
7 Saturdays from 10:30am to 5:30pm and Facetime calls on Tuesdays and Thursdays at 6:30pm—
8 be suspended pending an investigation by Child Protective Services and the San Francisco Police
9 Department. This Court granted the ex parte request pending a hearing on shortened time on
10 5/12/2026.
- 11 5) On 5/7/2026, Father filed a response to the ex parte request seeking restoration of his parenting
12 time, a review hearing within 30 days to monitor the status of the criminal and CPS investigation
13 and the custody evaluation, a written status update from Mother, law enforcement, CPS, and the
14 child custody evaluator, and an order requiring Mother to show cause why sanctions should not
15 be imposed under Family Code section 271 for her "repeated no-notice ex parte filings that have
16 disrupted Father's parenting time without evidentiary support."
- 17 6) On 5/11/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO)
18 seeking protection from Father for herself and on behalf of their children. The Court issued a
19 temporary restraining order, which includes an order temporarily suspending Father's parenting
20 time, consistent with the Court's 4/17/2026 ex parte order. The matter is scheduled to be heard on
21 5/27/2026 at 8:30am.

22 **B. Findings and Orders**

- 23 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
24 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
25 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
26 children is the United States.
- 27 2) In light of the pending investigations relating to the sexual abuse allegations and the pending
28 DVRO request, the Court hereby continues this matter to **Tuesday, 6/30/2026 at 9:00 AM in**
29 **Dept. 404**. At least 10 days before the continued hearing date, the parties shall file and serve

1 update declarations informing the Court of the status of any CPS and/or SFPD investigation and
2 any updates relating to custody and parenting time. At least 10 days before the review hearing,
3 the child custody evaluator is ordered to file and serve an update declaration informing the Court
4 of the status of the child custody evaluation and its estimated completion date.

5 3) The Court finds it is in the children's best interest to maintain the current temporary order for sole
6 legal and physical custody to Mother, with no parenting time for Father, pending written
7 agreement by the parties or further Court order to be made at the continued hearing or at the
8 DVRO hearing (currently scheduled for 5/27/2026).

9 4) Father's request relating to sanctions under Family Code section 271 is denied.

10 5) Mother's attorney shall prepare the Findings and Order After Hearing.

11 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).